

26VECV04451 26VECV04451

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-09-18

Motion: PLAINTIFF'S PETITION TO CONFIRM MINOR'S COMPROMISE

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Case Number: 26VECV04451 Hearing Date: September 18, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

Jaycob Beltran,

a minor, by and

through his Guardian Ad Litem, Rocio

Beltran

Plaintiff,

vs.

Santiago

Tzuban,

Defendants.

CASE NO: 26vecv04451

[TENTATIVE]

ORDER RE:

PLAINTIFF'S

PETITION TO CONFIRM MINOR'S COMPROMISE

Dept. W

8:30 a.m.

September 18, 2026

[TENTATIVE] ORDER: The Court TENTATIVELY
DENIES Jaycob Beltran's Petition to Confirm Minor's Compromise.

Background

While

details are scarce, this appears to be a motor vehicle personal injury case. On December 9, 2025, Plaintiff and minor Jaycob Beltran was a passenger in a vehicle driven by his father and guardian ad litem, Rocio Beltran. The vehicle was involved in a collision, and Plaintiff suffered neck, back, head, and shoulder injuries as a result.

On July 31, 2026, Plaintiff and minor Jaycob Beltran filed this lawsuit against Defendant Santiago Tzuban. According to Plaintiff's Complaint, the parties have already reached a settlement with Defendant's insurance provider. Both Plaintiff and his father will each receive \$30,000. Plaintiff filed suit so that he could seek the Court's approval of this settlement via the instant minor's compromise hearing.

The Court now hears Plaintiff's
Petition for Confirmation of Minor's Compromise.

Discussion

Plaintiff Jaycob Beltran

i)

Basic Information

Name of Minor: Jaycob
Beltran

Name of Guardian Ad Litem: Rocio
Beltran

Name of Defendants: Santiago
I Yax Tzuban

Total Settlement: \$30,000.00

Minor's Portion of Settlement: \$30,000.00

Medical Bills: \$7,000.00

Attorney Fees: \$7,500.00

Litigation Costs: \$497.25

TOTAL TO MINOR: \$15,002.75

(Petition for Minor's Comp, ¶¶ 12-14.)

ii)

General Requirements

An enforceable settlement of a minor's claim can only be consummated with court approval. (Prob. Code, § 3500.) "A petition for court approval of a compromise of, or a covenant not to sue or enforce judgment, on a minor's disputed claim; a compromise or settlement of a pending action or proceeding to which a minor or person with a disability is a party; or the disposition of the proceeds of a judgment for a minor or person with a disability under Probate Code sections 3500 and 3600-3613 or Code of Civil Procedure section 372 must be verified by the petitioner and must contain a full disclosure of all information that has any bearing upon the reasonableness of the compromise, covenant, settlement, or disposition. Except as provided in rule 7.950.5, the petition must be submitted on a completed Petition for Approval of Compromise of Claim or Action or Disposition of Proceeds of Judgment for Minor or Person With a Disability (form MC-350)." (Cal. Rules of Court, rule 7.950, emphasis in original.)

Here, this petition was prepared on form MC-350 and is verified by the petitioner. (See Petition for Minor's Comp., p. 10.)

The petition also explains that Jaycob is the only Plaintiff recovering in this case. (Exhibits, Id. ¶ 11.) While this might be technically true, the Court notes that Plaintiff's father also settled with Defendant's insurer out of court and will also be receiving \$30,000.00. (Petition to Confirm Minor's Comp, Chichyan Decl. ¶ 9.)

iii)

Handling of Funds

Based on this application, it is unclear what Plaintiff is proposing for the handling of these funds. First, Plaintiff checks box 18a(3)(b), which states that Plaintiff Jaycob's \$15,002.75 will be invested in a single-premium deferred annuity, subject to withdrawal only by court authorization. (Petition to Confirm, ¶ 18a(3)(b).) According to Plaintiff's application, the details of this annuity and account are contained on "Attachment 18a(3)(b)." (Ibid.) However, Plaintiff includes no such attachment.

Additionally, Plaintiff also checks box 18b(2), which requests that Plaintiff's \$15,002.75 be deposited in insured accounts in one or more financial institutions in this state, subject to withdrawal only on authorization of the court. The name, branch, and address of each depository are specified in Attachment 18b(2). Once again, the Court could not find any such attachment.

Finally, Plaintiff submitted a blank Form MC-355 alongside this application, suggesting Plaintiff does wish to use a blocked account to hold these funds. That said, the Court intends to ask for clarification at the hearing on this motion.

Given this ambiguity, the Court cannot determine the reasonableness of the handling of Plaintiff's funds. For this reason, the Court TENTATIVELY DENIES this motion.

iv)

Attorney Fees and Litigation Costs

Here, Petitioner states that \$7,500 of Petitioner's \$30,000 settlement share will be paid out as attorney fees. This amounts to 25% of the total recovery. (Chichyan Decl. ¶ 7) In support of this request, Petitioner submits a

copy of her attorney's retainer agreement. (Petition for Confirmation, Retainer Agreement.) Under the terms of this agreement, the parties agreed to a 25% contingency fee. (Id. p. 3) In the Court's view, this 25% contingency fee is much lower than what the Court typically sees. Thus, the Court finds this agreement fair and reasonable.

v)

Conclusion

While the Court has found the majority of this application to be sound, Plaintiff has not given the Court sufficient details as to the handling of Plaintiff's funds. For this reason, the Court TENTATIVELY DENIES Plaintiff's Petition to Confirm Minor's Compromise for minor Jaycob Beltran.

Conclusion

The Court TENTATIVELY DENIES Plaintiff's Petition to Confirm Minor's Compromise for minor Jaycob Beltran.

IT

IS SO ORDERED, Petitioner TO GIVE NOTICE.

September 18, 2026

Judge of the Superior Court